

Subject: LAW

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Paper : ADVANCED CONSTITUTIONAL LAW

Module :

PUBLIC SERVICE COMMISSIONS AND TRIBUNALS



Component - I - Personal Details

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Component - I (B) Description of Module

Subject Name	Law
Paper Name	Constitutional Law
Module/ Name/Title	Public Service Commissions and Tribunals
Module Id	25
Pre-requisites	The purpose of Public Service Commission and tribunals
Objectives	- To understand the working conditions of the Public Service Commission. - To analyze the political pressure on the Chairman and members of the Public Service Commission. - To understand the objectives of the tribunal system in India.
Keywords	Public Service Commission, Consultation with the Public Service Commission, Tribunal system, Article 323A and Article 323B, <i>L. Chandra Kumar's case</i> .



Component - II

Module IV: Public Service Commissions and Tribunals

Structure:

1. Introduction
2. Learning Outcome
3. Public Service Commission
 - 3.1. Meaning of Civil Service
 - 3.2. Appointment, Qualification and Security of Tenure for Chairman and Members of Public Service Commission
 - 3.3. Prohibition on the Re-employment
 - 3.4. Functions of and Consultation with the Public Service Commission
4. Tribunals
5. Interesting Facts
6. Points to Ponder
7. Summary

1. Introduction

Public Service Commission is an essential body in governing the public administration. Similarly, Tribunals have increased the efficiency of administration of justice. In the current module, the role and functions of the Public Service Commission have been discussed in detail. It is always mandatory to appoint an honest staff for every efficient public institution. Therefore, the module has also focussed on the methods of the commission's appointment. For having a look over the self-independence of the Public Service Commission, the module has mentioned some courts' landmark judgments.

Among all these adjudicatory bodies, tribunal is one of the most significant and efficient mode of resolving special matters. The module has analysed various Constitutional provisions which empower the Indian Parliament to establish tribunals in India. The Supreme Court's viewpoint over the powers of the tribunals has also been discussed.

2. Learning Outcome

- 2.1 Learners would be able to understand the working conditions of the Public Service Commission.



2.2 Learners would be able to analyse the political pressure on the Chairman and members of the Public Service Commission.

2.3 Learners would be able to understand the objectives of the tribunal system in India.

2.4 Learners would enhance their knowledge with regard to the powers of the tribunals in India.

3. Public Service Commission

3.1 Meaning of Civil Service

Encyclopaedia of Britannica defines civil service as the body of government officials who are employed in civil occupations that are neither political nor judicial. The term also refers to employees selected and promoted on the basis of a merit and seniority system, which may include examinations.¹

The public administrative system has ancient roots in India. During the Moghul period, the land revenue system was established. The East India Company used civil services for their commercial purposes. During the British rule, such servants started working for the Crown. The British government started the Indian civil service in order to strengthen their own British administration in the United Kingdom. But gradually the Indian civil services were also directed to further India's interests. After the commencement of the Indian Constitution, the public services as we see today came into existence.²

Currently, the civil service system is the most important part of the administrative machinery of the country. The civil service system in post-independent India is well organised. At the central level, the civil services include the All-India services, namely the Indian Administrative Service, the Indian Forest Service, and the Indian Police Service. There are various central services like the Indian Income Tax Service, Indian Railway Services etc. There are three tiers of administration-Union Government, State Governments and the Local governments. The State Governments have their own set of services.³

3.2 Appointment, Qualification and Security of Tenure for Chairman and Members of Public Service Commission

Since founding fathers of the Indian Constitution intended to set up autonomous and independent, impartial and integral bodies like the public service commission both at the centre and state level, the Constitutional provisions protect civil servants from any kind of political and personal influence. The Indian Constitution secures the tenure of chairman and members of the public service commission by providing for a strict judicial procedure for their suspension or removal.⁴ The Commission gives unbiased advice to the government on matters vitally affecting the morale of public services.⁵

¹ 'Civil Service' Encyclopaedia Britannica <<http://www.britannica.com/EBchecked/topic/119404/civil-service>> accessed 10 October 2014

² 'Second Administrative Reforms Commission Tenth Report: Refurbishing Of Personnel Administration, Scaling New Heights' <http://indiagovernance.gov.in/files/personnel_administration10.pdf> accessed 30 November 2008

³ *ibid.*

⁴ *Ram Ashray Yadav, Chairman, Bihar. Public Service Commission, In Re*, (2000) 4 SCC 309.

⁵ *State Of U. P v Manbodhan Lal Srivastava*, AIR 1957 SC 912.



Articles 315 to 321 of the Indian Constitution deal with the establishment and composition of the Commission as well as their consultative functions.

Art. 315 of the Constitution of India

315. Public Service Commissions for the Union and for the States

(1) Subject to the provisions of this article, there shall be a Public Service Commission for the Union and a Public Service Commission for each State

(2) Two or more States may agree that there shall be one Public Service Commission for that group of States, and if a resolution to that effect is passed by the House or, where there are two Houses, by each House of the Legislature of each of those States, Parliament may by law provide for the appointment of a Joint State Public Service Commission (referred to in this Chapter as Joint Commission) to serve the needs of those States

(3) Any such law as aforesaid may contain such incidental and consequential provisions as may be necessary or desirable for giving effect to the purposes of the law

(4) The Public Service Commission for the Union, if requested so to do by the Governor of a State, may, with the approval of the President, agree to serve all or any of the needs of the State

(5) References in this Constitution to the Union Public Service Commission or a State Public Service Commission shall, unless the context otherwise requires, be construed as references to the Commission serving the needs of the Union or, as the case may be, the State as respects the particular matter in question.

Article 315 of the Indian Constitution provides for separate Public Service Commission for the Union and States. Article 315(2) provides that two or more States may agree to have a joint Public Service Commission for that group of States.

The Constitution of India, Art. 316

316. Appointment and term of office of members.-

(1) The Chairman and other members of a Public Service Commission shall be appointed, in the case of the Union Commission or a Joint Commission, by the President, and in the case of a State Commission, by the Governor of the State:

Provided that as nearly as may be one-half of the members of every Public Service Commission shall be persons who at the dates of their respective appointments have held office for at least ten years either under the Government of India or under the Government of a State, and in computing the said period of ten years any period before the commencement of this Constitution during which a person has held office under the Crown in India or under the Government of an Indian State shall be included.



(1A) If the office of the Chairman of the Commission becomes vacant or if any such Chairman is by reason of

absence or for any other reason unable to perform the duties of his office, those duties shall, until some persons appointed under clause (1) to the vacant office has entered on the duties thereof or, as the case may be, until the Chairman has resumed his duties, be performed by such one of the other members of the Commission as the President, in the case of the Union Commission or a Joint Commission, and the Governor of the State in the case of a State Commission, may appoint for the purpose.

(2) A member of a Public Service Commission shall hold office for a term of six years from the date on which he enters upon his office or until he attains, in the case of the Union Commission, the age of sixty-five years, and in the case of a State Commission or a Joint Commission, the age

of sixty-two years, whichever is earlier:

Provided that -

(a) a member of a Public Service Commission may, by writing under his hand addressed, in the case of the

Union Commission or a Joint Commission, to the President, and in the case of a State Commission, to the

Governor of the State, resign his office;

(b) a member of a Public Service Commission may be removed from his office in the manner provided in

clause (1) or clause (3) of Article 317.

(3) A person who holds office as a member of a Public Service Commission shall, on the expiration of his term of office, be ineligible for re-appointment to that office.

Article 316 of the Constitution of India provides for the appointment of the Chairman and other members of the Public Service Commission. The Chairman and other members of Union and Joint Public Service Commissions are being appointed by the President of India. And the chairman and other members of state public service commission are being appointed by the Governor. Despite the fact that their tenure of service is fixed, the chairman or member can be removed. Article 317 provides that the chairman or member of public service commission can be removed with the Supreme Court's active involvement on the ground of misbehaviour.



The Constitution of India, Art. 317

Removal and suspension of a member of a Public Service Commission

(1) Subject to the provisions of clause (3), the Chairman or any other member of a Public Service Commission shall only be removed from his office by order of the President on the ground of misbehaviour after the Supreme Court, on reference being made to it by the President, has, on inquiry held in accordance with the procedure prescribed in that behalf under Article 145, reported that the Chairman or such other member, as the case may be, ought on any such ground to be removed

(2) The President, in the case of the Union Commissioner a Joint Commission, and the Governor in the case of a State Commission, may suspend from office the Chairman or any other member of the Commission in respect of whom a reference has been made to the Supreme Court under clause (1) until the President has passed orders on receipt of the report of the Supreme Court on such reference

(3) Notwithstanding anything in clause (1), the President may by order remove from office the Chairman or any other member of a Public Service Commission if the Chairman or such other member, as the case may be,

(a) is adjudged an insolvent; or

(b) engages during his term of office in any paid employment outside the duties of his office; or

(c) is, in the opinion of the President, unfit to continue in office by reason of infirmity of mind or body

(4) If the Chairman or any other member of a Public Service Commission is or becomes in any way concerned or interested in any contract or agreement made by or on behalf of the Government of India or the Government of a State or participates in any way in the profit thereof or in any benefit or emolument arising therefrom otherwise than as a member and in common with the other members of an incorporated company, he shall, for the purposes of clause (1), be deemed to be guilty of misbehaviour.



However, the Constitution does not provide the procedure for appointing the chairman and members of Public Service Commission. In *Mohinder Singh Gill & Anr. v The Chief Election Commissioner, New Delhi & Ors.*⁶, the Supreme Court held that under Article 316 of the Constitution, the Governor of a State has also implied powers to lay down the procedure for appointment of Chairman and Members of the Public Service Commission. The court further declared that the High Court under Article 226 of the Constitution cannot bypass this constitutional power of the Governor and lay down the procedure for appointment of the Chairman and other Members of the Public Service Commission.

However, the appointment of the Chairman and members of the service commissions should be done in a fair and efficient manner. The Chairman and members should be independent, honest, efficient and impartial persons. In *Ashok Kumar Yadav v State of Haryana & Ors.*,⁷ a Constitution Bench of the Supreme Court speaking through P.N. Bhagwati, J, emphasised that Public Service Commission should have competent, honest, independent and efficient persons who would not breach public confidence. It is only the Chairman and members having such reputed character who could make selections on the basis of merit.

So far as the qualification for the Chairman and members of the public service commission is concerned, the Supreme Court in *Mehar Singh Saini, Chairman, Haryana Public Service Commission, In re*,⁸ said that it is a function of the Parliament. The Supreme Court said the courts are not the appropriate bodies to draft guidelines regarding qualifications for the appointments of the Chairman and members of the public service commission under Article 316.

But the Supreme Court is an appropriate body to awake the governments so that they would make reasonable guidelines on all issues of an efficient civil service system in India. Recently, the Supreme Court in *T.S.R. Subramanian v Union of India & Ors*, Writ Petition (Civil) No.234 Of 2011, decided on October 31, 2013, directed the Centre, State Governments and the Union Territories to constitute Civil Service Board ('CSB') so that it can make recommendations on all transfers and postings. The court said that fixed tenure of bureaucrats brings professionalism, efficiency and good governance in the system. Most importantly, the Supreme Court held that the civil servants should not take and follow any verbal order from any executive member. They should act only on the written orders. The

⁶ (1978) 1 SCC 405.

⁷ (1985) 4 SCC 417.

⁸ (2010) 13 SCC 586.



court said that the civil servants must also be protected from any kind of arbitrary powers of administrative seniors and political executive members.

3.3 Prohibition on the Re-employment

Article 316 deals with the appointment of the Chairman and members of the Commission their term of office and their ineligibility for re-appointment. A member of a Public Service Commission cannot be reappointed as a member to that office. Article 319(d) which prohibits a member of the public service commission from taking employment under Government. However, Article 319(d) also provides an exception. It expressly declares that on ceasing to hold office the member of the public service commission becomes eligible for the appointment of Chairman of that Commission. It is not being considered as reappointment rather a fresh appointment. The time which a member spent in his earlier office, will not be counted for the purpose of new office of the Chairman. Therefore, the time period for the office of Chairman should be counted from the date when the member enters the office of Chairman.⁹

3.4 Functions of and Consultation with the Public Service Commission

Article 320(1) makes it the duty of the Union and State Public Service Commission to conduct examinations for the purposes of appointment to the services of the union or state. Under clause (2), the Union Public Service Commission (UPSC) is bound to assist states in making scheme for various recruitments.

The Supreme Court in *Union Public Service Commission v Girish Jayanti Lal*¹⁰ held that a regular appointment to a post under the State or Union without issuing proper advertisement inviting applications from eligible candidates and without holding a proper selection where all eligible candidates get a fair chance to compete would violate the guarantee enshrined under Article 16 of the Constitution.¹¹

Besides, the Public Service Commission has power to cancel results of the examination under certain circumstances. However, the Supreme Court in *Kumari Anamica Mishra v U.P. Public Service Commission*¹² held that before cancelling any such result, the Commission should have some strong and justified reasons. In case there is no defect in the written examination and the sole objection was confined to exclusion of a group of successful

⁹ *State Of Mysore v R. V. Bidap* AIR 1973 SC 2555.

¹⁰ (2006) 2 SCC 482.

¹¹ *ibid.* 490.

¹² 1990 Supp SCC 692.



candidates in the written examination from the interview, the court found no justification in cancelling the written part of the recruitment examination.¹³

The Constitution of India, 1950, Art. 320

“Functions of Public Service Commissions

(1) It shall be the duty of the Union and the State Public Service Commission to conduct examinations for appointments to the services of the Union and the services of the State respectively

(2) It shall also be the duty of the Union Public Service Commission, if requested by any two or more State so to do, to assist those States in framing and operating schemes of joint recruitment for any services for which candidates possessing special qualifications are required

(3) The Union Public Service Commission or the State Public Service Commission, as the case may be, shall be consulted

(a) on all matters relating to methods of recruitment to civil services and for civil posts;

(b) on the principles to be followed in making appointments to civil services and posts and in making promotions and transfers from one service to another and on the suitability of candidates for such appointments, promotions or transfers;

(c) on all disciplinary matters affecting a person serving under the Government of India or the Government of a State in a civil capacity, including memorials or petitions relating to such matters;

(d) on any claim by or in respect of a person who is serving or has served under the Government of India or the Government of a State or under the Crown in India or under the Government of an Indian State, in a civil capacity, that any costs incurred by him in defending legal proceedings instituted against him in respect of acts done or purporting to be done in the execution of his duty should be paid out of the Consolidated Fund of India, or, as the case may be, out of the Consolidated Fund of the State;

(e) on any claim for the award of a pension in respect of injuries sustained by a person while serving under the Government of India or the Government of a State or under the Crown in

¹³ ibid. 700.



India or under the Government of an Indian State, in a civil capacity, and any question as to the amount of any such award, and it shall be the duty of a Public Service Commission to advise on any matter so referred to them and on any other matter which the President, or, as the case may be, the Governor, of the State, may refer to them: Provided that the President as respects the all India services and also as respects other services and posts in connection with the affairs of the Union, and the Governor, as respects other services and posts in connection with the affairs of a State, may make regulations specifying the matters in which either generally, or in any particular class of case or in any particular circumstances, it shall not be necessary for a Public Service Commission to be consulted

(4) Nothing in clause (3) shall require a Public Service Commission to be consulted as respects the manner in which any provision referred to in clause (4) of Article 16 may be made or as respects the manner in which effect may be given to the provisions of Article 335

(5) All regulations made under the proviso to clause (3) by the President or the Governor of a State shall be laid for not less than fourteen days before each House of Parliament or the House or each House of the Legislature of the State, as the case may be, as soon as possible after they are made, and shall be subject to such modifications, whether by way of repeal or amendment, as both Houses of Parliament or the House or both Houses of the Legislature of the State may make during the session in which they are so laid.

Article 320(3)(c) of the Constitution provides that the Union Public Service Commission (U.P.S.C.) shall be consulted on all disciplinary matters affecting a person serving under the Government of India in a civil capacity, including memorials and petitions relating to such matters. The proviso to Article 320(3) provides that the President as respects the all India services and also as respects other services and posts in connection with the affairs of the Union, and the Governor, as respects other services and posts in connection with the affairs of a State, may make regulations specifying the matters in which either generally, or in any particular class of case or in any particular circumstances, it shall not be necessary for a Public Service Commission to be consulted.

In *S.V.K. Sahasramam v The Deputy Registrar Of Co-Operative Society*, on 29 August, 2008, the Madras High Court said that the question whether an expression used in a statutory provision is compulsory in nature or not has to be interpreted in its total context and, the mere expression of the word 'shall' alone is not decisive of the matter. Similarly, the whole provision of Article 320(3) cannot be read in a mandatory way. Otherwise, any



appointment made to the public services in violation of Article 320(3)(c), would adversely affect the innocent and faultless candidate. Such injustice was not even imagined by the makers of the Indian Constitution. The Supreme Court said that the provisions of Art. 320(3)(c) of the Constitution of India are not mandatory and that they do not confer any rights on a public servant so that the absence of consultation or any irregularity in consultation does not afford him a cause of action in a court of law.¹⁴

Again, in *Union of India v T.V.Patel*,¹⁵ the Supreme Court held that the provisions of Article 320(3)(c) of the Constitution of India are not mandatory. The Constitution makers envisaged that the consultation is not mandatory in certain class of cases. However, the decision of *Union of India v T.V.Patel* had been held per incuriam in the case of *Union of India & Others v S.K.Kapoor*¹⁶. In *SK Kapoor's case*, the Supreme Court opined that although Article 320 (3) (c) is not mandatory, if the authorities do consult the Union Public Service Commission and rely on the report of the Commission for taking disciplinary action, then the principles of natural justice require that a copy of the report must be supplied in advance to the employee concerned so that he may have an opportunity of rebuttal. Thus, the court viewed that the aforesaid decision in *T.V.Patel's* case was clearly distinguishable.

4. Tribunals

Few centuries back, the State was only meant to protect law and order in the society, and to protect its sovereignty from any internal or external aggression. The State assumed very limited functions. The State hardly bothered about individuals' interactions with each other. Even their fundamental rights were of least concern for the State. But later on, various developments like advancement in science and technology, industries, migration of rural population to urban areas, etc. raised serious issues including fundamental rights' violations, in the whole society. Eventually, it was not possible for the State to escape from their new responsibilities. Therefore, the State made up its mind to enhance its functions so that all such serious issues should be tackled. For this, the State started making its regulatory presence in all spheres of the society like education, industrial relations, transportation, welfare institutions, institutions of public services, etc. The State was aware of the fact that these functions require not mere modern legislations and executive authorities but also the advanced modes of adjudication. The traditional measures of adjudication were totally incompetent to resolve modern complex and technical nature of litigation. Such matters could not have been resolved in the traditional courts which were already under the burden of huge

¹⁴ *State Of U. P v Manbodhan Lal Srivastava*, AIR 1957 SC 912.

¹⁵ (2007) 4 SCC 785.

¹⁶ 2011 (4) SCC 589.



number of pending cases. Therefore, the State devised new techniques of adjudication including Alternative Dispute resolutions, Tribunals, special courts, etc. Among all these adjudicatory bodies, tribunal is one of the most significant and efficient mode of resolving special matters. On the similar lines, almost all civilized states have adopted tribunals in their judicial system. They have created different tribunals for different subject matters like income tax tribunal, administrative tribunal, industrial tribunal, etc. The tribunals do have exclusive original jurisdiction over special matters. Usually, its decisions are final and, not subject to judicial review. But in many countries like India, the decisions of Tribunals are subject to judicial review.

In India, the first Tribunal in the format of the Income-Tax Appellate Tribunal was established in the year of 1941. In the Independent India, Articles 323A and 323B were inserted into the Constitution of India in order to give constitutional recognition to the Tribunals. These provisions were added by the Constitution (42nd Amendment) Act, 1976. The idea behind the adoption of tribunal system in India was to reduce the mounting arrears in High Courts and to secure the speedy disposal of service matters, revenue matters and certain other matters of special importance in the context of the socio-economic development and progress.

The Constitution of India, 1950, Art. 323B

323B. Tribunals for other matters.— (1) The appropriate Legislature may, by law, provide for the adjudication or trial by tribunals of any disputes, complaints, or offences with respect to all or any of the matters specified in clause (2) with respect to which such Legislature has power to make laws.

(2) The matters referred to in clause (1) are the following, namely:—

- (a) levy, assessment, collection and enforcement of any tax;
- (b) foreign exchange, import and export across customs frontiers;
- (c) industrial and labour disputes;
- (d) land reforms by way of acquisition by the State of any estate as defined in article 31A or of any rights therein or the extinguishment or modification of any such rights or by way of ceiling on agricultural land or in any other way;



- (e) ceiling on urban property;
- (f) elections to either House of Parliament or the House or either House of the Legislature of a State, but excluding the matters referred to in article 329 and article 329A;
- (g) production, procurement, supply and distribution of food-stuffs (including edible oilseeds and oils) and such other goods as the President may, by public notification, declare to be essential goods for the purpose
- of this article and control of prices of such goods;
- (h) rent, its regulation and control and tenancy issues including the right, title and interest of landlords and tenants;
- (i) offences against laws with respect to any of the matters specified in sub-clauses (a) to (h) and fees in respect of any of those matters;
- (j) any matter incidental to any of the matters specified in sub-clauses (a) to (i).
- (3) A law made under clause (1) may—
- (a) provide for the establishment of a hierarchy of tribunals;
- (b) specify the jurisdiction, powers (including the power to punish for contempt) and authority which may be exercised by each of the said tribunals;
- (c) provide for the procedure (including provisions as to limitation and rules of evidence) to be followed by the said tribunals;
- (d) exclude the jurisdiction of all courts, except the jurisdiction of the Supreme Court under article 136, with respect to all or any of the matters falling within the jurisdiction of the said tribunals;
- (e) provide for the transfer to each such tribunal of any cases pending before any court or any other authority immediately before the establishment of such tribunal as would have been within the jurisdiction of such tribunal if the causes of action on which such suits or proceedings are based had arisen after such establishment;
- (f) contain such supplemental, incidental and consequential provisions (including provisions as to fees) as the appropriate Legislature may deem necessary for the effective functioning of,



and for the speedy disposal of cases by, and the enforcement of the orders of, such tribunals.

(4) The provisions of this article shall have effect notwithstanding anything in any other provision of this Constitution or in any other law for the time being in force.

Explanation.—In this article, “appropriate Legislature”, in relation to any matter, means Parliament or, as the case may be, a State Legislature competent to make laws with respect to such matter in accordance with the provisions of Part XI.

In India, tribunals are Quasi-judicial bodies created for specific purposes, and have been classified into Domestic, Service and Administrative tribunals. Service Tribunals are being created Under Art.323-A of Constitution & Administrative Tribunals Act, 1985. The administrative tribunals have further been classified at State, Joint or Central level.

The term ‘Courts’ refers to places where justice is administered or refers to Judges who exercise judicial functions. Every State exercises its judicial power through courts. The courts protect individuals’ rights, punish wrong doers and adjudicate disputes. Due to increase in the complexities in the modern litigation, the tribunals were constituted as alternative to the traditional courts. Tribunals are being constituted under a statute to decide disputes arising with reference to that particular statute, or to determine controversies arising out of any administrative law. Courts refer to Civil Courts, Criminal Courts and High Courts. Tribunals can be either private Tribunals (Arbitral Tribunals), or Tribunals constituted under the Constitution or Tribunals authorized by the Constitution (Administrative Tribunals under Article 323A and Tribunals for other matters under Article 323B) or Statutory Tribunals. Some Tribunals are manned exclusively by Judicial Officers (Rent Tribunals, Motor Accidents Claims Tribunal, Labour Courts and Industrial Tribunals). Other statutory Tribunals have Judicial and Technical Members (Administrative Tribunals, TDSAT, Competition Appellate Tribunal, Consumer fora, Cyber Appellate Tribunal, etc).¹⁷

The Constitution of India, 1950, Art. 323A

323A. Administrative tribunals.—(1) Parliament may, by law, provide for the adjudication or trial by administrative tribunals of disputes and complaints with respect to recruitment and conditions of service of persons appointed to public services and posts in connection with the affairs of the Union or of any State or of any local or other authority within the territory of

¹⁷ *Union of India v R. Gandhi, President, Madras Bar Association* (2010) 11 SCC 1.



India or under the control of the Government of India or of any corporation owned or controlled by the Government.

(2) A law made under clause (1) may—

(a) provide for the establishment of an administrative tribunal for the Union and a separate administrative tribunal for each State or for two or more States;

(b) specify the jurisdiction, powers (including the power to punish for contempt) and authority which may be exercised by each of the said tribunals;

(c) provide for the procedure (including provisions as to limitation and rules of evidence) to be followed by the said tribunals;

(d) exclude the jurisdiction of all courts, except the jurisdiction of the Supreme Court under article 136, with respect to the disputes or complaints referred to in clause (1);

(e) provide for the transfer to each such administrative tribunal of any cases pending before any court or other authority immediately before the establishment of such tribunal as would have been within the jurisdiction

of such tribunal if the causes of action on which such suits or proceedings are based had arisen after such establishment;

(f) repeal or amend any order made by the President under clause (3) of article 371D;

(g) contain such supplemental, incidental and consequential provisions (including provisions as to fees) as Parliament may deem necessary for the effective functioning of, and for the speedy disposal of cases by, and the enforcement of the orders of, such tribunals.

(3) The provisions of this article shall have effect notwithstanding anything in any other provision of this Constitution or in any other law for the time being in force.

Article 323A(1) empowers Parliament to establish tribunals for the adjudication or trial by administrative tribunals of disputes and complaints with respect to recruitment and conditions of service of persons appointed to public services and posts in connection with the affairs of the Union or of any State or of any local or other authority within the territory of India. Clause (2) of Article 323A provides that a law made by Parliament under clause (1)



may (i) provide for the establishment of an Administrative Tribunal for the Union and a separate Administrative Tribunal for each State or for two or more States; (ii) Specify the jurisdiction, powers and authority which may be exercised by such tribunals; (iii) provide for the procedure to be followed by these tribunals; and (iv) exclude the jurisdiction of all courts except the special jurisdiction of the Supreme Court under Article 136.

In pursuance of Article 323A, the Parliament enacted the Administrative Tribunals Act, 1985. The Administrative Tribunal Act was passed to provide for the adjudication or trial by Administrative Tribunals of disputes and complaints with respect to recruitment and conditions of service of persons appointed to public services and posts in connection with the affairs of the Union or of any State or of any local or other authority within the territory of India or under the control of the Government of India or of any corporation or society owned or controlled by the Government in pursuance of Article 323A of the Constitution and for matters connected therewith or incidental thereto. Service matters include recruitment, remuneration, pension and retirement benefits. Tenure includes confirmation, seniority, promotion, reversion, premature retirement, superannuation, Leave, disciplinary matters etc.

Section 5 of the Administrative Tribunals Act of 1985 provides the composition of tribunals and benches. Each Tribunal shall consist of a Chairman and such number of Judicial and Administrative Members as the appropriate Government may deem fit. A Bench shall consist of one Judicial Member and one Administrative Member. The qualification for a person to be appointed as Chairman of the tribunal is that the person is, or has been, a judge of a High Court or he has held the office of the Vice-Chairman at least for a period of two years. In *S.P. Sampat Kumar v Union of India*¹⁸ the Supreme Court said that if the Administrative Tribunal is created in substitution of the High Court and the jurisdiction of the High Court under Articles 226 and 227 is taken away and vested in the Administrative Tribunal, the same independence from possibility of executive pressure or influence must also be ensured to the Chairman, Vice-Chairman and members of the Administrative Tribunal.¹⁹

The court viewed that the appointment of Chairman, Vice-Chairman and administrative members must be done after consulting the Chief Justice of India. The court said that such consultation must be observed in a meaningful and effective manner. Finally the court held that a person to be appointed as chairman should have been a Judge of the High Court or he should have for at least two years held office as Vice-Chairman. A person who has merely held the post of Secretary to the Government of India and who has no legal and

¹⁸ AIR 1987 SC 386.

¹⁹ *Ibid.* p. 400.



judicial experience if appointed Chairman would not only fail to inspire confidence in the public mind but would also render the Administrative Tribunal a much less effective and efficacious mechanism than the High Court.²⁰

A seven-Judge Constitution Bench of the Supreme Court in *L. Chandra Kumar v Union of India*,²¹ held clause 2(d) of Article 323A and clause 3(d) of Article 323-B, to the extent they empowered the Parliament to exclude the jurisdiction of the High Courts and the Supreme Court under Articles 226/227 and 32 of the Constitution respectively as unconstitutional. The court held that the power of judicial review is the basic structure of the Constitution. The court held that all decisions of Tribunals, whether created pursuant to Article 323A or Article 323B of the Constitution, will be subject to the High Court's writ jurisdiction under Articles 226/227 of the Constitution, before a Division Bench of the High Court within whose territorial jurisdiction the particular Tribunal falls. According to the court, this scrutiny will serve two purposes. Firstly, as the court said that, while saving the power of judicial review of legislative action vested in the High Courts under Article 226/227 of the Constitution, it will ensure that frivolous claims are filtered out through the process of adjudication in the Tribunal. Secondly, the High Court will also have the benefit of a reasoned decision on merits which will be of use to it in finally deciding the matter.

The Supreme Court also held that the tribunals have power to decide those matters in which constitutionality of the legislations has been challenged.

In *L Chandra Kumar's case*, the Supreme Court also suggested that Tribunals be made subject to the supervisory jurisdiction of the High Courts within whose territorial jurisdiction they fall. Relying on *L Chandra Kumar*, the Supreme Court in *T. Sudhakar Prasad v Government of A.P.*²², further observed that transfer of jurisdiction in specified matters from the High Court to the administrative tribunal does not assign the administrative tribunals a status equivalent to that of the High Court nor does that mean that for the purpose of judicial review or judicial superintendence they cannot be subordinate to High Court. High Courts are creatures of the Constitution and their judges hold constitutional office having been appointed under the Constitution. The Tribunals are creatures of statute and their members are statutorily appointed and hold statutory office.²³

²⁰ *Ibid.* p. 402.

²¹ (1997) 3 SCC 261.

²² (2001) 1 SCC 516.

²³ *Ibid.*, para 19.



Recently, the Supreme Court in *Union of India v R. Gandhi, President, Madras Bar Association*,²⁴ held that the tribunal, on whom courts' jurisdictional power has been conferred, should have members of same rank, capacity and status as that of the court.

Doctrine of precedent applies in case of decisions given by administrative tribunals. In *S.I. Rooplal v Lt. Governor*²⁵, the Supreme Court held that a coordinate Bench of a Court cannot pronounce judgment contrary to declaration of law made by another Bench. It can only refer it to a larger Bench if it disagrees with the earlier pronouncement. Furthermore, the tribunal has power to punish for contempt of itself. But such power is again subject to writ jurisdiction of the High court under articles 226 and 227 of the Indian Constitution.

5. Interesting Facts:

- In *State of Punjab v Salil Sabhlok* (2013), the Hon'ble Supreme Court of India said that the appointment of the Chairperson of the Punjab Public Service Commission is an appointment to a constitutional position and is not a "service matter". A PIL challenging such an appointment is, therefore, maintainable both for the issuance of a writ of quo warranto and for a writ of declaration, as the case may be. The Supreme Court quashed the appointment of a former MLA Harish Dhanda to the post of Chairman of Punjab Public Service Commission stating that the appointment did not meet constitutional, functional and institutional requirements.
- The Hon'ble Supreme Court of India on 25th September, 2014 struck down the constitutional validity of the National Tax Tribunal Act. A constitution bench of Chief Justice R.M. Lodha, Justice Jagdish Singh Khehar, Justice J. Chelameswar and Justice A.K.Sikri, in their majority judgment, said that parliament could not take away the powers of the judiciary and vest them in a tribunal which does not have the characteristic of the court it is seeking to replace. < <https://in.news.yahoo.com/sc-quashes-unconstitutional-tax-tribunal-act-140224956.html>>

6. Points to Ponder:

- There is an urgent need to frame fair and effective guidelines for the selection and appointment of the Chairperson and members of the Public Service Commissions, so that the possibility of arbitrary appointments is removed.

²⁴ (2010) 11 SCC 1.

²⁵ (2000) 1 SCC 644.



- Whether the Indian Parliament would replace high courts with special tribunals in order to adjudicate complex matters? Is it possible for the parliament to appoint judges of the special tribunal in the same manner as it appoints high courts' judges?

7. Summary

The Indian Constitution secures the tenure of chairman and members of the public service commission by providing for a strict judicial procedure for their suspension or removal. Public Service Commission should have competent, honest, independent and efficient persons who would not breach public trust. The Hon'ble Supreme Court of India has held that the civil servants should not take and follow any verbal order from any executive member. They should act only on the written orders. The court said that the civil servants must also be protected from any kind of arbitrary powers of administrative seniors and political executive members. The Supreme Court of India said that the powers of the tribunals do not have same status as that of High Courts. The Court said that High Courts are creatures of the Constitution and their judges hold constitutional office having been appointed under the Constitution. The Tribunals are creatures of statute and their members are statutorily appointed and hold statutory office.